

Majid Khan v. Paschimanchal Vidyut Vitran Nigam Limited

High Court of Judicature at Allahabad · Division Bench · 17 February 2023 · WRIT-C No. 3629 of 2023 · **Disposed; theft demand withdrawn, fresh order under Supply Code**

HEADNOTE

A writ to quash a demand notice for electricity dues in a theft case was disposed of after the licensee withdrew the notice and stated that a fresh order would be passed after hearing. The Court left the licensee at liberty to pass that order strictly in accordance with the procedure under the Electricity Supply Code, 2005, without deciding liability or quantum.

FACTUAL SUMMARY

Majid Khan petitioned the Allahabad High Court against Paschimanchal Vidyut Vitran Nigam Limited and another to quash a demand notice dated 27 June 2021 issued by the second respondent for recovery of electricity dues said to arise from theft of electricity. On 2 February 2023 the department was given a week to take instructions. On 17 February 2023 its counsel stated, on instructions, that the notice had been withdrawn and that a fresh order would follow after the petitioner was heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

Fresh order on a withdrawn theft-dues demand

HOLDING

Where the licensee withdraws a demand notice for recovery of dues in a case of theft of electricity and undertakes to pass a fresh order after hearing the consumer, the writ is disposed of with liberty to pass that order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. The order names the Code and states no clause number. ¶ 2

PRINCIPLE TAGS

fresh-demand-order-must-follow-supply-code-procedure On the licensee's statement that the 27 June 2021 theft-dues notice stood withdrawn, the writ was disposed of and the licensee was left to pass a fresh order after hearing, strictly in accordance with the procedure under the Electricity Supply Code, 2005. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS LIABLE FOR THEFT OF ELECTRICITY, AND IN WHAT AMOUNT

The impugned notice was withdrawn. Any fresh demand was left to a later order after hearing, under the Supply Code procedure. ¶ 2